

BACKGROUND:

Kilcreggan Garage and MOT Centre understands that your privacy is important to you and that you care about how your personal data is used. We respect and value the privacy of all of our customers and will only collect and use personal data in ways that are described here, and in a way that is consistent with our obligations and your rights under the law.

1. Information About Kilcreggan Garage and MOT Centre (Partnership)

Address: Shore Road
Kilcreggan G84 0JJ

VAT number: 264 9549 17

We are a member of the Scottish Motor Trade Association.

We are approved by the Government appointed Driver and Vehicle Standards Agency to carry out MOT tests.

2. What Does This Notice Cover?

This Privacy Information explains how we use your personal data: how it is collected, how it is held, and how it is processed. It also explains your rights under the law relating to your personal data.

3. What is Personal Data?

Personal data is defined by the General Data Protection Regulation (EU Regulation 2016/679) (the "GDPR") as 'any information relating to an identifiable person who can be directly or indirectly identified in particular by reference to an identifier'. It is also protected by the Data Use and Access Act 2025 (DUAA)

Personal data is, in simpler terms, any information about you that enables you to be identified. Personal data covers obvious information such as your name and contact details, but it also covers less obvious information such as identification numbers, electronic location data, and other online identifiers.

The personal data that we use is set out in Part 5, below.

4. What Are My Rights?

Under the GDPR and DUAA, you have the following rights, which we will always work to uphold:

-) The right to be informed about our collection and use of your personal data. This Privacy Notice should tell you everything you need to know, but you can always contact us to find out more or to ask any questions using the details in Part 11.
-) The right to access the personal data we hold about you. Part 10 will tell you how to do this.
-) The right to have your personal data rectified if any of your personal data held by us is inaccurate or incomplete. Please contact us using the details in Part 11 to find out more.
-) The right to be forgotten, i.e. the right to ask us to delete or otherwise dispose of any of your personal data that we have. Please contact us using the details

in Part 11 to find out more.

-) The right to restrict (i.e. prevent) the processing of your personal data.
-) The right to object to us using your personal data for a particular purpose or purposes.
-) The right to data portability. This means that, if you have provided personal data to us directly, we are using it with your consent or for the performance of a contract, and that data is processed using automated means, you can ask us for a copy of that personal data to re-use with another service or business in many cases.
-) Rights relating to automated decision-making and profiling. We do not use your personal data in this way.

For more information about our use of your personal data or exercising your rights as outlined above, please contact us using the details provided in Part 11.

Further information about your rights can also be obtained from the Information Commissioner's Office or your local Citizens Advice Bureau.

If you have any cause for complaint about our use of your personal data, you have the right to lodge a complaint with the Information Commissioner's Office.

5. What Personal Data Do You Collect?

We may collect some or all of the following personal data, (this may vary according to your relationship with us). All this data is provided directly to us by you:

- Name
- Title
- Address
- Email address
- Telephone number
- Business name
- Information about your vehicle and its registration number
- Information to confirm your identity where we are required by law to do this

6. How Do You Use My Personal Data?

Under the GDPR, we must always have a lawful basis for using personal data. This may be because the data is necessary for our performance of a contract with you, because you have consented to our use of your personal data, or because it is in our legitimate business interests to use it. Your personal data will be used for one of the following purposes:

- Providing and managing your account.
- Supplying our services to you. Your personal details are required in order for us to enter into a contract with you.
- Communicating with you by responding to emails, letters, calls or messages from you and advising when your MOT is due.
- Confirming your identification, as legally required, if we supply you with vehicle registration plates.

7. How Long Will You Keep My Personal Data?

We will not keep your personal data for any longer than is necessary in light of the reason(s) for which it was first collected. Your personal data will therefore be kept for a period of 7 years after you cease to do business with us.

8. How and Where Do You Store or Transfer My Personal Data?

We will only store or transfer your personal data in the UK. This means that it will be fully protected under the GDPR. It is stored on accounting software, paper invoices, diary and a mobile phone with a security code, used only for Garage business.

9. Do You Share My Personal Data?

We will not share any of your personal data with any third parties for any purposes, subject to one important exception.

In some limited circumstances, we may be legally required to share certain personal data, which might include yours, if we are involved in legal proceedings or complying with legal obligations, a court order, or the instructions of a government authority.

If any of your personal data is required by a third party, as described above, we will take steps to ensure that your personal data is handled safely, securely, and in accordance with your rights, our obligations, and the third party's obligations under the law, as described above in Part 8.

10. How Can I Access My Personal Data?

If you want to know what personal data we have about you, you can ask us for details of that personal data and for a copy of it (where any such personal data is held). This is known as a "subject access request". In line with the DUAA, we will only conduct reasonable and proportionate searches for your personal data.

All subject access requests should be made in writing and sent to the email or postal addresses shown in Part 11.

There is not normally any charge for a subject access request. If your request is 'manifestly unfounded or excessive' (for example, if you make repetitive requests) a fee may be charged to cover our administrative costs in responding.

We will respond to your subject access request within one month of receiving it.

11. How Do I Contact You?

To contact us about anything to do with your personal data and data protection, including to make a subject access request, please come and see us in person or use the following details:

Email address:	kilcreggangarage@btconnect.com
Telephone number:	01436 842898
Postal Address:	Kilcreggan Garage and MOT Centre Shore Road Kilcreggan G84 0HN

12. How do I make a data protection complaint?

If you wish to lodge a data protection complaint about the way we have handled your personal information please contact us directly using the contact information given above. For example, if you consider we have infringed data protection legislation in

the way we responded to a subject access request; the security measures taken if you have been impacted by a data breach; or how we have collected or used your personal data (eg where we've stored it, how long we have kept it, its accuracy). If we are not sure whether you are making a data protection complaint we will ask you to clarify.

In order to investigate a complaint we will need you to provide:

- . written evidence of how you think we have infringed your rights under data protection legislation and the outcome you are looking for
- . recognised proof of your identity eg driving licence, passport or equivalent
- . your written authorization if someone is making the complaint on your behalf and recognized proof of your and your representative's identity

We will log your complaint and acknowledge it within 30 days. We will take appropriate steps to respond to your complaint including making enquiries and keeping you informed, without undue delay, aiming to conclude and inform you of the outcome within three months.

We will keep records of what we did: the complaint and proof of id, the date we received the complaint, our acknowledgement, any relevant conversations and documents, the outcome and any actions taken as a result.

If you are not satisfied, you can raise the issue with the Information Commissioner's Office (ICO).

13. Changes to this Privacy Notice

We may change this Privacy Notice from time to time. This may be necessary, for example, if the law changes, or if we change our business in a way that affects personal data protection.

Any changes will be made available on our webpage and will be displayed in the Garage Reception.